
The Walthamstow Murder

Source: *The British Medical Journal*, Vol. 2, No. 1186 (Sep. 22, 1883), pp. 583-585

Published by: BMJ

Stable URL: <https://www.jstor.org/stable/25264165>

Accessed: 12-07-2025 21:01 UTC

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and hot plates were applied all round her body. Just before she was moved to bed, I exposed the pupil of the left eye to a strong light, and, after perhaps fifteen seconds, I distinctly observed a very slight movement in the iris, more like a faint wave along the edge than any act of contraction or dilatation. After being in bed some time and getting into heat, this action was more distinctly observable, and, shortly afterwards, the eyeball gave a slight roll to the right, as if to avoid the light, and the same recurred as often as the eyelid was raised. A little later, the same movements took place in the right eye. A slight movement was observed in the left leg, and gradually she was able to draw it up a little. This was followed, after a while, by the same movement in the right leg. The respirations were not so rapid, and the pulse at the wrist 140. There were one or two vomitings of a white frothy substance, and once a little blood with it. Her attention seemed now to be arrested when she was spoken to in a loud voice, but there was no response by any movement on her part. I left her at 1.30 P.M., with the conviction that she would recover, or rally at any rate for a time. I visited her again about 4 P.M., and found her under the influence of great excitement, almost beyond control, trying to get out of bed, and striking at those about her when restrained from doing so. She was not yet conscious. She was given a little ice, iced water, and iced milk, but only in quantities sufficient to wet her mouth and throat. She was now ordered to have an enema administered every four hours, consisting of beef-tea, beaten-up egg, and milk, in quantities of about two tablespoonfuls, and she was not to have anything by the mouth, except as above recorded. Up to the 22nd, she had not the slightest desire for food; all the enemata, with one exception, were retained, and proved quite sufficient for the sustenance of the body. The bowels were moved every day, the motions presenting nothing particular in colour; while the urine, for the first two or three days, was very dark, though never black, and micturition was very frequent, but painless. At my visit in the evening, she was more calm and more under control; the pulse was still 140, the respirations rather less frequent. The mucous membrane of the mouth and tongue was very white. Both lips were swollen, and a little everted. She was now quite conscious, and recognised all about her.

July 11th. She had slept fairly well, though somewhat restless at times. She complained of dryness and soreness of the throat, and frequently herself applied iced water to the swollen lips and tongue by means of a camel-hair brush. There was a short hacking cough, which troubled her very much, and continued to do so for three or four days. Injections were ordered to be continued, and in larger quantities. July 12th. She had a good night's sleep, and was free from pain. Up to the 20th, she continued steadily to progress, and she was cautiously allowed to drink a little beef-tea, and milk and egg and bread-sop; at the same time only two enemata were given each day, and, by the 25th, she was entirely fed in the usual way. She is now quite convalescent.

I have great pleasure in acknowledging the able assistance rendered in the case by my professional friends, Messrs. G. Welford, E. A. Maling, Whitehouse, and W. Maling.

JAMES BARRON, M.R.C.S.Eng., Sunderland.

NOTES ON BOOKS.

Materia Medica: a Manual for the Use of Students. By ISAMBARD OWEN, M.D., Lecturer on Materia Medica and Therapeutics to St. George's Hospital. (London: J. and A. Churchill. 1883.)—This is an extension of the author's *Tables of Materia Medica*, and is apparently intended for students preparing for examination. It contains a Synopsis of Compound Preparations, a list of Latin Phrases employed in Prescribing, a Synopsis of Doses, a Table of Non-official Drugs, and a good deal of information of a similar character. It has evidently been carefully and laboriously compiled; and we trust it will serve the purpose for which it is intended.

The Newer Materia Medica. Designed and issued to the Medical Profession by PARKE, DAVIS and Co., Detroit, Michigan, U.S.A., 1883.—This useful and compact little volume contains a great deal of valuable information concerning many remedies which are gradually taking a place in our list of medicinal agents. *Convallaria majalis*, *Rhamnus purshiana*, *Pisoidia erythrina*, *Myrtus Chekan*, *Yerba santa*, and *Berberis aquifolium* are names familiar enough to most of us; but there are few who would not be glad to obtain further information concerning their uses and properties. The work issued by Messrs. Parke, Davis and Co. is of very great value, and will be read with interest.

BRITISH MEDICAL ASSOCIATION.

SUBSCRIPTIONS FOR 1883.

SUBSCRIPTIONS to the Association for 1883 became due on January 1st. Members of Branches are requested to pay the same to their respective Secretaries. Members of the Association not belonging to Branches, are requested to forward their remittances to the General Secretary, 161A, Strand, London. Post Office Orders should be made payable at the West Central District Office, High Holborn.

The British Medical Journal.

SATURDAY, SEPTEMBER 15th, 1883.

THE WALTHAMSTOW MURDER.

THE case of William Gouldstone, who now lies under sentence of death for the murder of his five children at Walthamstow on the 8th ultimo, is one which will require the careful consideration of the Home Secretary; for, notwithstanding the absence of any hesitation on the part of the jury in finding their verdict, and the observations of the learned judge who tried the case, many thoughtful persons who read the evidence will doubt whether the convict was of sound mind, and legally responsible for his actions, at the time when he committed the crime for which he is condemned to suffer. When a young man of sober and industrious habits, who throughout five years of married life has been undeviatingly kind to those dependent on him, returns home and deliberately kills his five children, the act itself is calculated to excite suspicions as to his sanity. When it is found that the only motive for this slaughter of innocents, who can have given no offence, and whose death brought no profit, was the desire of the slayer to free himself from the burden of their maintenance, and to translate them to heaven, or at least to spare them the trials and sorrows of this troublesome world, these suspicions are considerably deepened; and when it further appears that the perpetrator of this wholesale infanticide is a member of a family in which insanity abounds, and has by his conduct and expressions led his fellow-workmen to regard him as a madman, there are certainly good grounds for believing that he was not a rational being, and capable of controlling himself, when he took the lives of his children.

The account which William Gouldstone himself gave of the murder, in expressions used to his wife, to Mrs. Hamilton, the person who was waiting on her, and to the police, and which was relied on by the prosecution as proving deliberation, and a knowledge of the quality of the act and its consequences, strongly suggests to the medical mind the workings of a disordered brain. Having just drowned the three eldest children, of whom he had been very fond, and battered in the skulls of the two infants as they lay on their mother's breast, he remarked to Mrs. Hamilton, with a callousness of feeling which is scarcely human, but very characteristic of lunacy, "Now I am a happy man." To his prostrated weeping wife he said, "I have killed all your children; now you will be single again, and I shall be hanged"; and to the policeman who took him to the station, he explained: "When I took my money last week I thought of buying a revolver to do it with; but I altered my mind, as I thought it would make too much noise. I had a hard job with the two biggest. I thought it was too hot to have five kids in about three years and a half, and thought I would put a stop to it." Now, there can be no doubt that William Gouldstone knew the consequences to himself of killing his children, for he referred more than once to the fate which awaited him. He knew that his act would forfeit his own life, but he knew this just as the insane suicide knows

that water will drown and a knife cut. The knowledge had lost its deterrent effect upon him, and became, indeed, an inducement to the crime; for it is clear that he desired to compass his own death at the same time that he removed his children from the earth. He attempted no concealment, the avoidance of the revolver and its noise being due evidently not to the risk of detection which it involved, but to the fear that he might be interrupted before the completion of his holocaust. He made no effort to escape, but met the officers of justice with satisfaction, and dwelt with complacency on his own inevitable end. It is conceivable, of course, that a sane man, overwhelmed by misfortune and resolved on suicide, might plan to sacrifice those whom he loved best, removing them from the calamities which he had found intolerable, and at the same time insuring his own death at the hands of the executioner. It is conceivable that a murder, or plurality of murders, might be committed under the influence of such an abnormal but still rational state of mind; but it is certainly scarcely probable, for he who would murder under such conditions and motives would almost inevitably prefer death self-inflicted to death in process of law. But it is to be noted that the circumstances necessary to the development of that extraordinary but rational frame of mind, in which a murder with a view to execution might be committed, did not exist in the case of William Gouldstone, for he was not overwhelmed by misfortune, nor had any calamity befallen him. He had regular work, and was earning wages which enabled him to live in as much comfort as men in his station are accustomed to. He had suffered no loss nor wrong, and was not stung by remorse for intemperance and debauchery. His trouble was a prospective and an imaginary one. On the 2nd of August his wife had given birth to twins, and so he had one child more than he had calculated on to provide for. The unexpected addition to his family caused him no immediate embarrassment. To a prudent and thrifty man, such an event might have given rise to a moment's chagrin and some anxious forebodings; but the gulf between such feelings, and the determination to murder not only the intruder, but all his brothers and sisters, is simply impossible in a well constituted, or even in a criminal mind, so long as reason is retained. It is not so, however, in the morbid mind. There, the transition from a trivial emotion to a horrible outrage is easy enough; and the facility with which such a transition was effected in the case of William Gouldstone, suggests that his mind was essentially morbid at the time. From the moment when the birth of the twins was announced to him a change was noticed in his demeanour. He seemed strange in his manner, and on two occasions he was seen crying. The shock of hearing that two instead of one had been added to his flock of "kids," as he called them, opened the flood-gates of hereditary despondency in this moody and morose man; and from this point it is not difficult, by aid of our common experience of the insane, to trace his progress towards the sanguinary catastrophe in which his melancholy ended. His difficulties grew as he brooded over them, by day and night (for he was probably sleepless), until they seemed insufferable. Blackness and despair were around and before him, and every trifling occurrence was exaggerated into a great misfortune. Life was made wretched by mental and physical pain, for constant headaches now distressed him, and existence must be got rid of at any cost; so he thought of throwing himself down the lift at the place where he was employed, or of precipitating himself before a passing train. But, as he contemplated suicide, a thoughtless exclamation of his wife opened up to him a more excellent way. She said she wished the children were dead. Why should he not gratify her and take them with him into the other world? This idea possessed and over-mastered him. No compunctions or visitings of pity or affection ever came to him. He had to do it. He kept thinking of the deed, and the thought of it was the only solace in his dejection. He made his preparations and carried out his plan, not in a frenzy of brutal

passion, but with cool unfeeling hardihood; and then he had a sense of relief and almost of triumph. The true quality of his act never occurred to him. He had done his duty "like a man," and made everybody concerned happy. The children were happy, for they were in heaven; he was happy, for he would be hung; and his wife was happy, for she would be left a widow and childless, and might marry again. Thus, with the inconsequential reasoning and confused notions of madness, did William Gouldstone exult over his crime.

But if the theory of William Gouldstone's crime here indicated is correct—and it is hard to see what other theory is reconcilable with all the facts of the case—the question next arises, whether he could be held responsible by the law of this country for a crime committed under such circumstances and incentives. We certainly think not. Dr. Savage, the only specialist examined at the trial, expressed his belief that Gouldstone was of unsound mind when he murdered his children; but he would have been justified in going further, and declaring that he did not know the nature and quality of his act when he did so. No doubt he knew that he was killing his children, and that he would be hanged for it; but he did not know that he was doing wrong, but was as fully persuaded of the righteousness of his proceedings as is the lunatic who kills at the command of God. He knew that he was acting illegally, but not that he was acting wrongly; and neither was he capable of refraining from the murders, for he had, by no default of his own, but by reason of disease, lost the power of controlling his own conduct, and was helpless in the grip of a dominating impulse as clay is in the hands of the potter.

It is certainly regrettable that Mr. Justice Day, in laying down the law to the jury in this case, adhered to the old and narrow interpretation of the law, which can never be brought into harmony with scientific experience, and said nothing of that broad and luminous exposition of it which has been published lately by Mr. Justice Stephen in his masterly *History of the Criminal Law of England*, and which has been hailed by medical men with so much delight, as going far to remove the differences which have often heretofore arisen between them and the legal profession in cases in which insanity has been in question. "The proposition which I have to maintain and explain," says Mr. Justice Stephen, "is that, if it is not, it ought to be the law of England, that no act is a crime if the person who does it is, at the time when it is done, prevented, either by defective mental power or by any disease affecting his mind, from controlling his own conduct, unless the absence of the power to control has been produced by his own default. No doubt, there are cases in which madness interferes with the power of self-control, and so leaves the sufferer at the mercy of any temptation to which he may be exposed; and if this be shown to be the case, I think the sufferer ought to be excused." "Can it be said that a person so situated knows that his act is wrong? I think not; for how does anyone know that any act is wrong except by comparing it with general rules of conduct which forbid it; and if he is unable to appreciate such rules, or to apply them to the particular case, how is he to know that what he proposes to do is wrong?"

But instead of adopting this sound and logical position in the case of Gouldstone, Mr. Justice Day seems to have instructed the jury, that the only question for them was whether the prisoner knew the nature and quality of the act he was committing, and knew that it was wrong. Nothing seems to have been said as to the significance of the word "wrong," and the different meanings that may be attached to it, nor was any allusion made to the effects of an enfeebled or paralysed will. It might be argued that, even on the strictest and most old-fashioned version of the law, William Gouldstone was entitled to an acquittal, as he did not truly know the nature and quality of his act, nor its heinous character; but, under the more liberal construction of Mr. Justice Stephen, his prospects of being dealt with as a lunatic would have been vastly increased. The medical men in the case would have testified em-

phatically that he was deprived by disorder of the brain of the power of passing a rational judgment on the moral character of the act which he meant to do, and of his full measure of self-control, so that he fell an easy prey to the temptations presented to him by his disordered imagination.

It is much to be hoped that the case of Gouldstone will be reviewed by Sir William Harcourt, with the assistance of some eminent medical men skilled in diseases of the mind. Too much caution cannot be observed in such cases, and too much medical acumen cannot be brought to bear on them. Only a few weeks ago, a prisoner died in one of our convict establishments who was sentenced, at last summer assizes, to a long term of penal servitude for a murderous assault on his wife; and, on an examination of his body, a large abscess was found in his brain. But an abscess of the brain does not form in a day; and it seems probable that this terrible lesion, or the pathological changes antecedent to it, which necessarily involve mental impairment, were the explanation not only of the man's death, but of his crime. He had apparently been tried and condemned to a severe and ignominious punishment when practically in a dying state, and perhaps comprehending very little of his own situation. Now, suppose that the murderous assault committed by this man had proved fatal, and that he had been tried on the capital charge. Is there not every likelihood that he would have been condemned and executed for a crime committed when the organ of his mind was hopelessly disabled? The errors and futilities of jurisprudence in this country seem to us to be attributable mainly to the disinclination of its professors to profit by experience. In this matter of insanity, they keep discussing the *dicta* of the judges in 1843, and ignore the march of science since that time. Medical evidence is jeered at and disregarded, but no steps are taken to test its truthfulness. Let us suggest one such step. In scores of cases, during the last twenty years, medical men have intervened to save from the gallows convicts tried by the aid of eminent counsel, and condemned to death by eminent judges, but whom they have regarded as insane; and, in a large number of cases, their intervention has been successful, the capital sentence having been commuted, often amidst loud protests and severe strictures on the eccentric notions of mad-doctors. Now, let a return be obtained of the subsequent history of all these cases in which the capital sentence has been commuted on the ground of insanity. If, in any considerable proportion of these cases, it should appear that the medical men have been wrong, and that the convicts whose lives were spared were not really insane, then there will be good grounds for receiving medical testimony with increasing caution and diminishing authority. But if, on the other hand, it should appear, as we confidently predict it would, that in every instance, without exception, in which the death-penalty has been set aside, in consequence of medical representations regarding insanity, the most indisputable symptoms of madness have been subsequently exhibited—symptoms recognisable, not only by medical men, but by the governors, chaplains, and lay officers of the establishments in which the convicts have been confined—then there will be grounds for concluding that many insane persons have been executed in this country; for medical representations of the strongest character have sometimes been disregarded in cases in which insanity was alleged. There will also be grounds for asking for greater deference to medical opinion than has hitherto been accorded to it, in so essentially medical a question as the existence or non-existence of an obscure disease; and for demanding a better system of examination of prisoners who are supposed to be insane than that which now prevails. Dr. Savage saw William Gouldstone on one occasion, for between a quarter and half an hour; and, after this one brief interview, he had to form a judgment as to his mental condition. Only after a prolonged course of observation, and some experiments, can a thoroughly trustworthy conclusion be arrived at, in so difficult and abstruse a question as that of mental unsoundness.

HOSPITAL ACCOMMODATION FOR INFECTIOUS DISEASES IN LIVERPOOL.

THE want of adequate hospital accommodation for non-pauper cases of infectious disease has for a long time been felt in Liverpool; and circumstances of a somewhat peculiar character having lately given special prominence to this want, the entire subject has been considered at various meetings of the City Council and Health Committee; and in consequence of a resolution passed by the latter body on the 9th of August, a report has been drawn up by the medical officer of health on the present amount of accommodation and the necessity for making further provision by hospital construction or otherwise. The circumstances which have led up to this report are briefly as follows.

Typhus fever had been for so long a time prevalent in some of the streets of Toxteth Park, without any apparent amelioration, that at length certain of the guardians of that parish made an independent personal investigation, and, as the result of this investigation, expressed opinions which were thought to reflect injuriously on the action of the Liverpool Health Committee in the matter. The medical officer of health for that city being referred to for an explanation, in effect charged the guardians themselves with being in a great measure responsible for the continuance of the disease, in that they allowed patients to remain in their homes instead of having them promptly removed to hospital. "So far as my powers go," he wrote, "I have done all that is possible; but I would suggest that your"—*i.e.*, the guardians—"staff should remove the cases more expeditiously, and not leave them in their homes infecting others." On this serious countercharge being made, a further inquiry was instituted, which resulted in showing that, during a few months immediately preceding the issue of the report in which that charge was embodied, no fewer than six hundred cases of fever had been removed to the hospital in Smithdown Road; while in only one case, where the patient had been willing to go and a medical certificate of fitness to travel had been granted, had the removal been delayed a single day. It was alleged, moreover, that such methods had been adopted by the medical officer of health for promoting the indiscriminate removal of patients to the parochial hospital, as would have been likely to bring the guardians into legal difficulties unless they had exercised timely caution, and had determined in no case to allow their officers *ultra vires* to pauperise the people in order that the city of Liverpool might postpone the consideration of the question of hospital construction. The method seems to have been pretty much as follows. A report having been forwarded to the medical officer of health that an infectious disease existed in a given house, that gentleman appears to have often taken it for granted that the accommodation was inadequate, and that the people were of the class who should be removed to a parochial hospital; and hence he sent a report to the relieving officer, who, acting upon this, endeavoured to obtain removal, until at length complaints grew so loud and threatening as to compel the guardians to insist on the practice being put a stop to, and on their officer in future proceeding only by recognised and legal methods. The following letter will serve as an indication of a wide-spread feeling.

"89, Warwick Street, June 13th, 1883.

"To the Chairman and Members of the Board of Guardians,—Sirs,—The relieving officer came to my house a few days ago, and spoke about removing my children, who have recently been ill, to the workhouse hospital. I always thought the duties of a relieving officer were to concern himself with paupers only. Now, gentlemen, as I am not a pauper, and never was one, the visit from your officer, who, I presume, acted on your directions, gave me much surprise and disgust. I request that you will at once remove me from your list of paupers, and I think you will not consider I am taking a liberty in asking you to inform me on what grounds you sent your officer to my house.—I am, etc., DAVID WAINWRIGHT."